Pennsylvania Implementing AI in Schools: Data and Student Privacy Passages

Excerpted verbatim from *Implementing AI in Schools (Pennsylvania Department of Education web page)*. The source has no page numbers; locations are given by section. This is a web page, so no page numbers are given. Ellipses (…) mark omitted text.

Rigorous Evaluation of AI Tools: Terms, Data and Privacy Laws

Source: web page, section 'Rigorous Evaluation of AI Tools'

Before introducing an AI tool, schools should carefully review its terms and conditions.

Schools should fully understand who has legal authority and control over the data that is entered into the system, what uses are permitted, vendor obligations, and third-party data sharing practices. Administrators must understand what liability they may or may not be taking on, and what happens if there is misuse, inaccuracies, or data breaches.

All student data is sensitive, and AI systems must comply with all applicable federal and state laws protecting that data.

Schools must comply with applicable student privacy laws, such as the Family Educational Rights and Privacy Act (FERPA) and the Children's Online Privacy Protection Act (COPPA) when required. As a rule of thumb, AI tools should only be allowed to collect, process, and retain the minimum amount of data necessary to deliver the service they are providing.

Questions Schools Should Ask When Considering AI Tools (excerpt)

Source: web page, section 'Other Considerations'

- What data does the tool require to be used successfully? Is that data available and safe to use?
- How can we ensure private data of all stakeholders, including students, parents, educators, and support staff, isn't utilized by the tool for training the AI tool or other purposes?